

Opinion of the Court

“And,” he explained, “the judges very rightly and *mercifully* thought not, because he had undergone one trial already.” *Gage*, Ridg. T. H., at 271–272, 27 Eng. Rep., at 827 (emphasis added). This suggests that Hutchinson was spared retrial as a matter of discretion (“merc[y]”)—which must be true if the Chancellor was right that foreign judgments were not binding. Indeed, at least one modern scholar agrees (on other grounds as well) that the result in *Hutchinson* may have been based on “expediency rather than law.” M. Friedland, *Double Jeopardy* 362–363 (1969).

In the end, then, *Gage* is doubly damaging to Gamble. First, it squarely rejects the proposition that a litigant in an English court—even a civil litigant in equity—had a *right* to the benefit of a foreign judgment, a right that the Fifth Amendment might have codified. And second, *Gage* undermines Gamble’s chief historical example, *Hutchinson*, by giving a contrary reading of that case—and doing so, no less, in one of the only two judicial accounts of *Hutchinson* that we have from before the Fifth Amendment.

The other account appears in *Burrows v. Jemino*, 2 Str. 733, 93 Eng. Rep. 815 (K. B. 1726).⁹ In *Burrows*, a party that was sued in England on a bill of exchange sought an injunction against this suit in the Court of Chancery, contending that the suit was barred by the judgment of a court in Italy. In explaining why he would grant the injunction, Lord Chancellor King cited *Hutchinson*, which he thought had involved an acquittal in *Spanish* court that was “allowed

territorial operation of this Act as clear.” *Squibb* 149. Indeed, the statute cited in the *Hutchinson* bail report, dated to just two years later, cited lingering “doubtes and questions” about whether English courts could try treason committed abroad (in the course of clarifying that treason and misprisions of treason abroad could indeed be tried in England). 35 Hen. 8, ch. 2, § I.

⁹This case is also reported as *Burrows v. Jemineau* in Sel. Ca. t. King 69, 25 Eng. Rep. 228 (Ch. 1726); as *Burroughs v. Jamineau* in Mos. 1, 25 Eng. Rep. 235; as *Burrows v. Jemineau* in 2 Eq. Ca. Abr. 476, 22 Eng. Rep. 405; and as *Burrows v. Jemino* in 2 Eq. Ca. Abr. 524, 22 Eng. Rep. 443.